

## 25STCV24667 25STCV24667

County: los-angeles

Division: Civil Law and Motion

Department: 517

Hearing date: 2026-08-25

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The Court will not be issuing a tentative ruling in advance of the hearing this morning on the Plaintiffs' motion for leave to amend their Complaint to add a new Plaintiff, Jason Koontz. The Court makes the following observations, however, for counsel for both sides to consider for purposes of the hearing. First, the declaration of Plaintiffs' counsel in support of the motion does not comply with the requirements of California Rules of Court, rule 3.1324(b), which specifies that declarations supporting motions for leave to amend set forth

(1) the effect of the amendment;

(2) why the amendment is necessary and proper;

(3) when the facts giving rise to the amended allegations were discovered; and

(4) the reasons why the request for amendment was not made earlier. That said, Plaintiffs' counsel could easily fix the defects in his declaration and refile the motion for leave to amend to add Koontz as a Plaintiff. Second, the Court discerns no prejudice to the Defendants if Koontz were added to the case through the proposed amendment. The case is still at a relatively stage. Indeed, the trial has not yet been set. Absent prejudice, motions for leave to amend should be liberally granted.